

for obtaining records from Kaiser Permanente and half of the filing and e-filing fees for the complaint. The court is not inclined to award a \$250 administrative file set-up fee. Further, even if the court were so inclined, there is no explanation for why this fee would not also be divided in half.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** September 22, 2026 .
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: ***Agustin Villatoro v. Joshua Johnson***
Superior Court Case No. 25CECG05170

Hearing Date: September 23, 2026 (Dept. 403)

Motion: Plaintiff's Motions to Compel Discovery of Peace Office
Personnel Records (*Pitchess*)

Tentative Ruling:

To grant plaintiff's motion to compel discovery of the documents relating to himself. To grant the motion to compel discovery of the personnel files and complaints relating to Commander Joshua Johnson.

Explanation:

Plaintiff Agustin Villatoro ("Villatoro" or "plaintiff") brought his complaint against defendant, City of Sanger, ("Sanger") and Joshua Johnson ("Johnson") (collectively "defendants") asserting claims for harassment, retaliation, discrimination, Public Safety Officers Procedural Bill of Rights Act ("POBRA"), and the failure to prevent harassment.

Villatoro brings the present motion seeking personnel records related to himself and his supervisor and alleged harasser, Commander Johnson. (All other record requests have been withdrawn.) (Reply Papers, pg. 2:3-4.):

1. PEACE OFFICER: AGUSTIN VILLATORO

All personnel records maintained by the City of Sanger relating to peace officer Agustin Villatoro, including but not limited to:

A. All records relating to Plaintiffs discipline, appraisal, performance evaluations, or adverse employment actions, including any investigations, notices of intent, or recommendations regarding medical separation or retirement.

B. All records relating to any complaints or investigations of complaints concerning Plaintiffs conduct.

C. All records relating to any complaints Plaintiff filed against members of the Department and/or City.

D. All records in Plaintiff's personnel file as defined in California Penal Code Section 832.8.

E. All records relating to any communications and/or notices made to the Peace Officer Standards and Training (POST) concerning Plaintiff.

2. PEACE OFFICER: COMMANDER JOSHUA JOHNSON

All personnel records maintained by the City of Sanger relating to peace officer Commander Joshua Johnson, including but not limited to:

F. All records relating to any complaints, investigations, or disciplinary actions alleging discrimination, retaliation, harassment, lying, falsification of records, sexual misconduct, criminal misconduct and abuse of power claims.

G. [Withdrawn]

H. All records relating to any complaints or investigations of complaints concerning Commander Johnson's mistreatment of subordinate employees.

I. All records relating to any sustained findings involving conduct constituting discrimination, retaliation, dishonesty, or violations of department policy.

J. All complaints naming Commander Johnson as a subject of misconduct and/or policy violations.

K. All records relating to any communications and/or notices made to the Peace Officer Standards and Training (POST) concerning Johnson.

(Moving Papers, pp. 14:7-15:9.)

With respect to the second category, the request for Johnson's performance evaluations is also withdrawn. (Reply Papers, pg. 2:4-5.) Plaintiff now requests in camera review of the following records maintained by Sanger concerning Johnson:

1. Plaintiff's harassment complaint against Johnson, all records of the investigation of that complaint, including the investigation conducted by JL Group, the findings of that investigation, and all records reflecting the City's response to it.

2. All other complaints, and records of any investigation of such complaints, alleging sexual harassment, sexual misconduct, discrimination, retaliation, or abuse of supervisory authority, together with records reflecting the City's response to each.

3. All records reflecting any sustained finding against Johnson involving harassment, discrimination, retaliation, dishonesty, or abuse of authority.

4. All records reflecting discipline imposed on Johnson, or a decision not to impose discipline, in connection with any complaint described above.

5. All records reflecting any complaint or finding of dishonesty by Johnson in connection with the reporting or investigation of misconduct.

6. All records reflecting harassment and discrimination training provided to Johnson, including records of his completion of that training.

7. All communications between the City and the Commission on Peace Officer Standards and Training concerning Johnson.

(Reply, pg. 5-22.)

Legal Standard

Evidence Code section 1043, subdivision (a) requires that a party seeking disclosure of police officer "personnel records" file a particular motion, a *Pitchess* motion. (Cf. *Pitchess v. Superior Court* (1974) 11 Cal.3d 531.) "Personnel records" are defined as "primary records specific to each peace or custodial officer's employment, including evaluations, assignments, status changes, and imposed discipline." (Pen. Code, § 832.5, subd. (d)(1).) The *Pitchess* provisions "take precedence over the general discovery rules outlined in the Code of Civil Procedure." (*Davis v. City of Sacramento* (1994) 24 Cal.App.4th 393, 400.)

Evidence Code section 1043, subdivision (b) details what a *Pitchess* motion shall include: (1) Identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency which has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard. (2) A description of the type of records or information sought. [And] (3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records.

"Section 1043 clearly requires a showing of 'good cause' for discovery in two general categories: (1) the 'materiality' of the information or records sought to the 'subject matter involved in the pending litigation,' and (2) a 'reasonable belief' that the governmental agency has the 'type' of information or records sought to be disclosed." (*Santa Cruz, supra*, 49 Cal.3d at p. 83.) Courts have described that as a "relatively low threshold" for discovery, but have also noted that section 1045's protective provisions offset that low threshold. (*Id.* at p. 83–84.)

"Under the statutory scheme, a party seeking discovery of a peace officer's personnel records must follow a two-step process. [Citation]." (*Haggerty v. Superior Court* (2004) 117 Cal.App.4th 1079, 1086; *Riske v. Superior Court* (2016) 6 Cal.App.5th 647, 656 ["This two-step process for discovery of peace officer personnel records balances the officer's strong privacy interests in his or her own personnel records with the needs of civil litigants and criminal defendants to obtain information material to their claim or defense"].)

"First, the party must file a written motion describing the type of records sought, supported by '[a]ffidavits showing good cause for the discovery ..., [i.e., the affidavits must] set[] forth the materiality [of the discovery] to the subject matter involved in the pending litigation and stat[e] upon reasonable belief that the governmental agency identified has the records or information from the records.' ([Evid. Code] § 1043, subd.

(b)(3).)" (*Haggerty, supra*, 117 Cal.App.4th at pp. 1085-86.; *Riske, supra*, 6 Cal.App.5th at p. 655 ["Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party ... shows materiality ... and states upon 'reasonable' belief that the agency has the type of information sought"].)

"This initial burden is a 'relatively relaxed standard.' [Citation.]" (*Haggerty, supra*, 117 Cal.App.4th at p. 1086.) "Information is material if it "'will facilitate the ascertainment of the facts and a fair trial." [Citation.]' [Citations.]" (*Ibid.*; *Riske, supra*, 6 Cal.App.5th at p. 658 ["The critical limitation for purposes of the initial threshold determination is materiality, which, in this context, means the evidence sought is admissible or may lead to discovery of admissible evidence"].) "'[A] declaration by counsel on information and belief is sufficient to state facts to satisfy the 'materiality' component' [Citation.]" (*Haggerty, supra*, 117 Cal.App.4th at p. 1086.)

If the court finds good cause, then an in camera review of the records must be held. (*Slayton v. Sup.Ct.* (2006) 146 Cal.App.4th 55, 61.) After personally examining the records in camera, the trial court shall order disclosure of peace officer personnel records that are "relevant to the matter involved in the pending litigation." (Evid. Code, § 1045(a); *People v. Mooc* (2001) 26 Cal.4th 1216, 1226.) If disclosure is ordered, the court must also order that the disclosed information may not be used "for any purpose other than a court proceeding pursuant to applicable law." (Code Civ. Proc., § 1045 subd.(e); see *Alford v. Sup.Ct. (People)* (2003) 29 Cal.4th 1033, 1039-1040.)

Plaintiff's Own Records

With respect to Villatoro's own records, Sanger only objects to records pertaining to "All records relating to any complaints Plaintiff filed against members of the Department and/or City." (Opposition, pg. 14-22.) Sanger argues that:

Obviously, such complaints are not part of *Plaintiff's* personnel records, since they would not be used to evaluate *him*, but rather, would be part of the personnel records for the individual *against* whom he made those complaints. (See Pen. Code § 832.8 [defining peace officer personnel records to include complaints about the "manner in which [the officer] performed his or her duties."].)

(Opposition, pg. 5:16-19, emphasis NOT added.)

Complaints made by Villatoro against members of the Department and/or Sanger are not necessarily part of Villatoro's own personnel records. But *Pitchess* discovery procedures relate to relevant "personal information" of officers wherever it exists and however it is maintained by the employing entity. Here, complaints made by Villatoro against members of the Department and/or Sanger may be relevant in order for Villatoro to fairly present his claims for discrimination, retaliation, harassment, failure to prevent harassment, and POBRA violations under the Fair Employment and Housing Act.

Thus, the court finds that Plaintiff has demonstrated good cause for the production of records pertaining to documents that Villatoro categorized as records relating to Villatoro.

Joshua Johnson's Personnel Records

Villatoro contends that there is good cause to disclose the documents requested in the second category, with respect to Johnson. Plaintiff alleges that Johnson engaged in a pattern of sexual harassment directed at Villatoro, where Villatoro alleges Johnson sent Villatoro text messages containing sexually explicit content including references to sexual positions and genitalia. (Rutkowsli Decl., ¶18.) For example, Villatoro alleges Johnson sent Plaintiff a photograph of a blow-up doll wrapped in paper bearing the word "Ho" with a red ribbon over the groin region accompanied by the text "Did you get me for Secret Santa?" and that Johnson also sent Plaintiff a video of an individual defining a sexual term. (*Id.*) Villatoro argues that that all complaints pertaining to Johnson, and not just sexual harassment complaints, are pertinent, as Sanger had actual notice of Johnson's propensity for harassment, (Moving Papers, pg. 18:5-8), and are material with respect to claims that the City had actual knowledge of prior misconduct and failed to take adequate corrective action. (Moving Papers, pg. 18:21-23.) Furthermore, Villatoro claims that he was terminated based on an investigation Johnson initiated. (Moving Papers, pg. 18:25-26.)

Sanger in opposition, objects to records related to Johnson's conduct that do not involve Villatoro. (Opposition, 5:24-25.) Sanger's objections that documents not pertaining to Villatoro are non-permissible "me too" evidence, (Opposition, 6:2-28), or immaterial as those claims have nothing to do with Villatoro. (Opposition, 7:1-6.) Sanger did not object to other grounds.

Under these circumstances, the Court finds there is good cause for the discovery. An employer's knowledge is an element of a claim under Government Code section 12940, subdivision (k). An employer that received complaints about a supervisor and declined to act cannot establish that it took all reasonable steps to prevent that supervisor from harassing the next subordinate. Additionally, the records may be relevant to show whether the Department conducted a proper investigation. (See *Mendoza v. Western Medical Center Santa Ana* (2014) 222 Cal.App.4th 1334, 1344 ["The lack of a rigorous investigation by defendants is evidence suggesting that defendants did not value the discovery of the truth so much as a way to clean up the mess that was uncovered when [plaintiff] made his complaint"].) Furthermore, with respect to "me-too" evidence and admissibility, the standard is not whether the records in question would be admissible in court, as Sanger argues, but whether it "may lead to the discovery of admissible evidence. *Warrick v. Superior Court* (2005) 35 Cal.4th 1011, 1025-1026.

Thus, the court finds that Plaintiff has demonstrated good cause for the production of records pertaining to Johnson.

In Camera Review

The only individuals to be present at the in camera review to the extent the parties do not stipulate as noted above, are a court reporter, a custodian of records and the

attorney for Sanger (the party who holds the privilege as to the documents being produced), as well as any other person as the attorney for Sanger authorizes to be present.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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